

Sarita W/O Gorakh Pawar And Another vs The State Of Maharashtra And Another on 12 March, 2026

2026:BHC - AUG:10999 - DB

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crwp 308.26+.o

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
BENCH AT AURANGABAD

CRIMINAL WRIT PETITION NO.308 OF 2026

1. Vinod Ganesh Pawar,
age 36 yrs, Occ. Business. Husband
2. Ragini w/o Ganesh Pawar,
age 57 yrs, Occ. Household. Mother-in-law

Both Residing at
House no.246, Sant Tukaram Nagar,
Anothony Garden, 446/1882,
Pimpri Chinchwad.

Petitioners.

Versus

1. The State Of Maharashtra,
Through the Police Officer of
Shrirampur City Police Station,
Shrirampur, Tq. Shrirampur,
District Ahmednagar.
2. Mrs. Disha w/o Vinod Pawar,
age 28 yrs, Occ. Nil,
R/o at present resident of
Ambedkar Colony, Godhwani Road,
Ward No.1, Shrirampur, Tq. Shrirampur,
District Ahmednagar.

Respondents.

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WITH

CRIMINAL WRIT PETITION NO.1848 OF 2023

1. Mrs. Sarita W/o Gorakh Pawar
Age: 45 Years; Occu: Housewife
R/o: Swapnanagari Co-op Housing Society,
Wing D-4, Flat NO. 104, Near Vital Hospital,
Udhyam Nagar, Pimpri. Pune-18 (Accused No. 5)
(Wife of Uncle of Husband)

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2. Mrs. Shilpa @ Bebi W/o Raju Telangi

Age: 60 Years; Occu: Self Employed
R/o: House No. 151/A, Sai Prakash Palace,
Kharalwadi, Pimpri, Pune.
(Paternal of Husband) . . .PETITIONERS

VERSUS

1. State of Maharashtra,
Through the Police officers of
Shrirampur City Police Station,
Shrirampur, Taluka: Shrirampur,
District : Ahmednagar.
2. Mrs. Disha W/o Vinod Pawar
Age: 28 Years; Oecu: Nil,
R/o: At present resident of:
Ambedkar Colony, Godhwani Road,
Ward No.1, Shrirampur, (INFORMANT)
Taluka: Shrirampur, District:Ahmednagar.
. . .RESPONDENTS

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WITH
CRIMINAL WRIT PETITION NO.83 OF 2024

1. Hema W/o Manish @ Manashshe Reed
Age: 42 Years; Occu: Private Job (Married Sister in Law)
2. Manish @ Manashshe Mozes Reed
Age: 45 Years; Occu: Private Job
Both temporarily residing at:
House No. 246, Sant Tukaram Nagar,
Anothony Garden, 446/1882, Pimpri-Chinchwad,
Pune,
Permanent resident of
Ashirwad Niwas, Bank of Baroda Lane
Near Jaswant Super Market,
Kalubai Nagar, Kharadi, Pune Petitioners

VERSUS

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1. State of Maharashtra
Through the Police officers of
Shrirampur, Taluka: Shrirampur,
District: Ahmednagar.
2. Mrs. Disha W/o Vinod Pawar
Age: 28 Years; Occu: Nil,
R/o: At present resident of
Ambedkar Colony, Godhwani Road,
Ward No.1, Shrirampur, (INFORMANT)
Taluka: Shrirampur, District: Ahmednagar. .

. .RESPONDENTS

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Advocate for Petitioners : Ms.Yashashree Patwardhan a/w
Sarvesh Bhimale a/w Mrs. R.S. Kulkarni
APP for Respondents: Mr. P.P. Dawalkar
Advocate for Respondent 2 : Ms. Priyanka Kale h/f Mr. A.B.
Jagtap

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CORAM : S. G. CHAPALGAONKAR, J.

Dated : March 12, 2026

FINAL ORDER :-

1. The petitioners in all these three writ petitions seeks to quash and set aside the FIR bearing Crime No.267 of 2022 dated 13.4.2022 registered with the Shrirampur City Police Station, Shrirampur, District Ahmednagar for the offences punishable under sections 498-A, 323, 504, read with Section 34 of the Indian Penal Code and consequential criminal case registered upon filing of the charge-sheet bearing RCC No.192 of 2022 pending on the file of the learned Judicial Magistrate First Class, Shrirampur, District Ahmednagar.

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2. Learned counsel appearing for petitioners and respondent no.2 submits that parties have arrived at amicable settlement of matrimonial dispute. Petitioner no.1 husband and respondent no.2 have filed petition under section 13 (1) (ib) of the Hindu Marriage Act for divorce by mutual consent before the learned Civil Judge S.D. Shrirampur.

3. It appears that some amount is agreed to be paid by way of permanent alimony. Now, it is submitted that amount is already parted with. Similarly, respondent no.2 consents to withdraw criminal proceedings in R.C.C. No.192 of 2022 pending before the J.M.F.C., Shrirampur which is a subject matter of the present proceeding. The respondent no.2 has filed her personal affidavit before this Court affirming the aforesaid facts and records her consent for quashing of the criminal proceeding arising out of crime no.267 of 2022. The aforesaid sequence of events clearly depicts that parties have amicably settled matrimonial dispute and respondent no.2 has voluntarily withdrawn all allegations against the petitioners in these three writ petitions.

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4. At this stage, reference can be given to the observations of the Hon'ble Supreme Court in case of Narinder Singh and Others Versus State of Punjab and another (2014) 6 SCC 466, where in paragraph no.31 it is observed thus :-

"31. Where criminal cases having overwhelmingly and pre-

dominantly civil character, particularly those arising out of commercial transactions or arising out of matrimonial relationships or family disputes should be quashed when the parties have resolved their entire disputes among themselves. The possibility of conviction is remote and bleak and continuation of criminal cases would put the accused to great oppression and prejudice and extreme injustice would be caused to him by not quashing the criminal cases."

5. Looking to the aforesaid exposition of law and nature of the dispute involved in this case and genuine settlement between the parties, this Court finds that case is made out to exercise inherent powers under section 528 of the BNSS.

6. Parties are personally present before this Court and they affirms contents of affidavit and submits that they have amicably settled the dispute.

7. In that view of the matter, Criminal Writ Petition no.308 of 2026 is allowed in terms of prayer clause "A" and "B", Criminal Writ Petition Nos.1848 of 2023 and Criminal Writ 6 crwp 308.26+.odt Petition no.83 of 2024 are allowed in terms of prayer clause "A" & "G".

(S. G. CHAPALGAONKAR, J.) ...

AAA/-